

STATE OF NEW YORK

4067--A

2025-2026 Regular Sessions

IN SENATE

January 31, 2025

Introduced by Sens. KAVANAGH, MYRIE, CLEARE, BAILEY, BASKIN, BRISPORT, BROUK, COMRIE, COONEY, FAHY, FERNANDEZ, GIANARIS, GONZALEZ, GOUNARDES, HARCKHAM, HINCHEY, HOYLMAN-SIGAL, KRUEGER, LIU, MAY, MAYER, RAMOS, RIVERA, SALAZAR, SANDERS, SEPULVEDA, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to codifying the disparate impact standard in the human rights law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 296 of the executive law is amended by adding a new subdivision 5-a to read as follows:

5-a. (a) For any case alleging housing discrimination under this article, an unlawful discriminatory practice may be established by a practice's discriminatory effect, even if such practice was not motivated by a discriminatory intent. The practice may still be lawful if supported by a legally sufficient justification, as defined in paragraph (c) of this subdivision.

(b) For the purposes of this subdivision, a practice has a discriminatory effect where it actually or predictably results in a disparate impact on a group of persons or creates, increases, reinforces, or perpetuates segregated housing patterns because of race, creed, color, national origin, citizenship or immigration status, sexual orientation, gender identity or expression, military status, sex, age, disability, marital status, status as a victim of domestic violence, lawful source of income or familial.

(c) (1) A legally sufficient justification exists where the challenged practice:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (i) is necessary to achieve one or more substantial, legitimate,
2 nondiscriminatory interests of the respondent; and
3 (ii) those interests could not be served by another practice that has
4 a less discriminatory effect.

5 (2) A legally sufficient justification shall be supported by evidence
6 and may not be hypothetical or speculative. The burdens of proof for
7 establishing each of the two elements of a legally sufficient justifica-
8 tion are set forth in paragraph (d) of this subdivision.

9 (d) (1) The complainant shall have the burden of proving that a chal-
10 lenged practice caused or predictably will cause a discriminatory
11 effect.

12 (2) Once the complainant satisfies the burden of proof set forth in
13 subparagraph one of this paragraph, the respondent shall have the burden
14 of proving that the challenged practice is necessary to achieve one or
15 more substantial, legitimate, nondiscriminatory interests of the
16 respondent.

17 (3) If the respondent satisfies the burden of proof set forth in
18 subparagraph two of this paragraph, the complainant may still prevail
19 upon proving that the substantial, legitimate, nondiscriminatory inter-
20 ests supporting the challenged practice could be served by another prac-
21 tice that has a less discriminatory effect.

22 (e) A demonstration that a practice is supported by a legally suffi-
23 cient justification, as defined in paragraph (c) of this subdivision,
24 may not be used as a defense against a claim of intentional discrimi-
25 nation.

26 (f) Nothing in this subdivision shall be construed or interpreted as
27 limiting, restricting, overriding, or supplanting any broader interpre-
28 tation of the discriminatory practices described in this article or the
29 availability of liability under this article.

30 § 2. This act shall take effect immediately and shall apply to all
31 cases alleging unlawful discriminatory practices constituting housing
32 discrimination occurring on and after such effective date. Effective
33 immediately, the addition, amendment and/or repeal of any rule or regu-
34 lation necessary for the implementation of this act on its effective
35 date are authorized to be made on or before such effective date.